

**CITY OF SAN MATEO
ORDINANCE NO. 2026-05**

Amending Uncodified Ordinance No. 2016-1 Authorizing the Implementation of a Community Choice Aggregation Program to Remove Reference to Peninsula Clean Energy Due to the Name Change to Westlight Energy

WHEREAS, on January 4, 2016, the City entered into a Joint Powers Agreement (JPA) with the County of San Mateo and other cities establishing the Peninsula Clean Energy Authority (PCE); and

WHEREAS, under the JPA, agency members may participate in PCE's Community Choice Aggregation Program (CCA) ; and

WHEREAS, the City adopted Ordinance No. 2016-1 to authorize the implementation of CCA pursuant to California Public Utilities Code Section 366.2; and

WHEREAS, Ordinance No. 2016-1 specifically refers to the CCA program of PCE; and

WHEREAS, PCE has undergone a legal name change to Westlight Energy; and

WHEREAS, this proposed Ordinance amends Ordinance No. 2016-1 to specify the City's continued participation in a CCA program but without specifically referring to the program name.

NOW, THEREFORE, THE COUNCIL OF THE CITY OF SAN MATEO ORDAINS AS FOLLOWS:

Section 1. The above recitations are true and correct and material to this Ordinance.

Section 2. Ordinance No. 2016-1 is amended as follows:

Section 2 of Ordinance No. 2016-1 is hereby amended to state:

Authorization To Implement a Community Choice Aggregation Program. Based upon the forgoing, and in order to provide business and residents within the City of San Mateo with a choice of power providers and with the benefits described above, the City Council of the City of San Mateo ordains that it shall implement a community choice aggregation program within its jurisdiction by participating as a group with the County of San Mateo and other cities and towns as described above in the Community Choice Aggregation program administered by the Joint Powers Authority, as generally described in the Joint Powers Agreement.

Section 3. Environmental Determination. This Ordinance amendment is not a project subject to CEQA, because the amendment of Ordinance No. 2016-1 to update the Peninsula Clean Energy's legal name change is an administrative activity that will not result in direct or indirect physical changes in the environment. (CEQA Guidelines Section 15378(b)(5).)

Section 4. Severability. In the event any section, clause or provision of this Ordinance shall be determined invalid or unconstitutional, such section, clause or provision shall be deemed severable and all other sections or portions hereof shall remain in full force and effect. It is the intent of the City Council that it would have adopted all other portions of this Ordinance irrespective of any such portion declared to be invalid or unconstitutional.

Ordinance No. 2026-05

Peninsula Clean Energy Name Change to Westlight Energy – Ordinance Adoption

Section 5. Publication. This Ordinance shall be in full force effective 30 days after its adoption, and shall be published and posted as required by law.

Section 6. Legislative History and Effective Date. This Ordinance was introduced on May 4, 2026, and adopted on May 18, 2026, and shall be effective thirty days after its adoption.

The foregoing Ordinance was adopted by the City Council of the City of San Mateo, State of California by the following vote:

AYES: Council Members Loraine, Fernandez, Cwirko-Godycki, Diaz Nash, and Newsom

NOES: None

ABSENT: None

ATTEST:

The image shows a handwritten signature in blue ink, which appears to read "Martin McTaggart", next to the official seal of the City of San Mateo, California. The seal is circular with a tree in the center and the words "CITY OF SAN MATEO" and "CALIFORNIA" around the perimeter.

Martin McTaggart, City Clerk

The image shows a handwritten signature in blue ink that reads "Adam Loraine".

Adam Loraine, Mayor